



SPONSOR: Sen. Cruce & Rep. Romer
Sens. Hoffner, Huxtable, Lockman, Mantzavinos,
Townsend, Walsh; Reps. Burns, Chukwuocha, Harris,
Minor-Brown, Morrison, Snyder-Hall, K. Williams

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 228

AN ACT TO AMEND TITLES 9 AND 14 OF THE DELAWARE CODE RELATING TO COUNTY ASSESSMENTS
AND TAX COLLECTION.

1 WHEREAS, property taxes play a vital role in funding Delaware's school districts and county and local
2 governments; and

3 WHEREAS, public confidence in the property tax system depends on accuracy of assessed values; and

4 WHEREAS, in 2024 and 2025, Delaware's counties completed general property reassessments, the first such
5 countywide reassessments in decades, following a court-approved settlement concerning longstanding property tax
6 inequities; and

7 WHEREAS, particularly in New Castle County, long-term changes in the use and value of commercial properties
8 contributed to significant shifts in assessed values and resulting property tax liabilities following the general reassessment;
9 and

10 WHEREAS, in order to address sudden, dramatic spikes in New Castle County residents' property tax bills, the
11 General Assembly passed emergency legislation in August 2025; and

12 WHEREAS, since August 2025, the General Assembly has examined measures to strengthen counties' ability to
13 conduct regular reassessments that improve accuracy and predictability in valuation and promote greater fairness in
14 property tax liability; and

15 WHEREAS, since August 2025, the General Assembly has examined possible measures it can take to provide
16 property tax relief and fairness to the most vulnerable Delawareans, and to provide incentives intended to promote
17 outcomes that strengthen key opportunities and supports in Delaware; and

18 WHEREAS, the General Assembly's examinations are ongoing; and

19 WHEREAS, based on its examinations to date, the General Assembly concludes that there is reason to be
20 concerned about the potential underassessment of commercial properties, particularly in New Castle County, arising from
21 the recent general property reassessment; and

WHEREAS, under current law, property owners who believe their properties may be overassessed have a recourse each year to seek a reduction in the assessed value of their property, not having to wait until the next general property reassessment to achieve such individual relief and fairness; and

WHEREAS, current law authorizes county tax-collecting authorities to correct errors identified in the property assessment lists, and the General Assembly intends to create a new mechanism to supplement, not replace, that authority, so that accurate property assessments and equitable, fair taxation can be achieved as quickly as possible following the first countywide reassessments in decades; and

WHEREAS, current law can be clarified and strengthened to ensure assessing authorities, without having to wait until the next general reassessment to achieve relief and fairness for the broader community, have the legal tools to examine independently whether properties might be underassessed and, therefore, not contributing an accurate and fair amount of taxes to the property tax base; and

WHEREAS, inaccurate property assessments can shift the tax burden unfairly, causing some properties to be under-taxed while others are over-taxed; and

WHEREAS, in the wake of the first general property reassessment in decades, and significant frustration and confusion in the community, the General Assembly concludes that counties, particularly New Castle County, should have the clear authority to undertake as thorough and reasonable an effort as possible to ensure the next tax year's property tax bills are fair and based on accurate property assessments; and

WHEREAS, Delawareans deserve government officials' best efforts to promote fairness and accuracy at all levels of government in Delaware; and

WHEREAS, members of the General Assembly value and respect the voices of constituents who have taken the time and effort to share their experiences, knowledge, and ideas to help identify problems in the property reassessment process and to suggest practical solutions.

NOW, THEREFORE:

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 83, Title 9 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 8345. Quality-control mechanism for general property reassessments; New Castle County.

(a) Notwithstanding any other provision of the Code, to ensure the accuracy of a general reassessment, the Office of Finance for New Castle County may conduct a quality control review of a tax parcel's new assessed value from a general reassessment when any one of the following circumstances exist:

(1) A clerical, mathematical, or factual mistake occurred during the new general reassessment process.

(2) A non-residential tax parcel whose assessed value from the new general reassessment is at least \$300,000 but decreased from its previous assessed value.

(3) A non-residential tax parcel's assessed value from the new general reassessment is at least \$300,000 and the percentage change in its newly assessed value from its assessed value prior to the new general reassessment is no greater than 50% of the median increase of non-residential properties in that county from the new general reassessment.

(4) A non-residential tax parcel's assessed value from the new general reassessment is at least 25% less than the actual sale price from that parcel's most recent sale within the 5 years preceding the new general reassessment, whenever the actual sale price is determinable by public records.

(b) A quality control review of a tax parcel's assessed value must adhere to the standards of § 8306(a) of this title. After conducting a quality control review, the Office of Finance may make revisions and corrections to the parcel's assessed value from the new general reassessment.

(c) Any revisions and corrections made after a quality control review by the Office of Finance are subject to the notice and appeal requirements of §§ 8312 and 8321 of this title.

(d) Any revisions and corrections made by the Office of Finance under this section must be made no later than October 16, 2026.

(e) Notwithstanding the provisions of § 8601(1) of this title, all taxes assessed and levied subject to this section shall be due and payable on November 9, 2026. Subject to § 8602(b) of this title, the Office of Finance shall mail to all taxables in the county a statement of their taxes collectible by New Castle County not more than 30 days after the taxes are due and payable.

(f) For purposes of this section, any subpoena of records issued by the Office of Finance is subject to § 8304A of this title.

(g) This section does not create any private cause action to force, mandate, or otherwise require the Office of Finance conduct a quality control review upon any specific parcel.

Section 2. Amend Chapter 19, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1916. Tax collection warrant and assessment list; tax rate after general reassessment.

(d) The board shall, no later than the second Thursday in July, deliver its warrant, with a duplicate of the assessment list, to the receiver of taxes and county treasurer of the county or counties where the district is located.

82 (e) Notwithstanding the provisions of subsection (d) of this section, the school board of any district within New
83 Castle County shall, no later than October 30, 2026, deliver its warrant, with a duplicate of the assessment list, to the
84 receiver of taxes and county treasurer of the county or counties where the district is located. In the event a school district
85 within New Castle County experiences a shortfall of local school funds as a result of this subsection for the 2026-2027
86 school tax year, the school district may request, and the State may advance, monies from State Division I funds.

87 Section 3. This Act expires on March 31, 2027, unless otherwise provided by a subsequent act of the General
88 Assembly.

SYNOPSIS

 This Act provides the Office of Finance for New Castle County the authority to conduct a quality control review of a tax parcel's new assessed value after a general reassessment when any of the following conditions exist:

- (1) A clerical, mathematical, or factual mistake occurred during the new general reassessment.
- (2) A non-residential tax parcel whose assessed value from the general reassessment is at least \$300,000 but decreased from its previous assessed value.
- (3) A non-residential tax parcel's assessed value from the new general reassessment is at least \$300,000 and the percentage change in its newly assessed value from its assessed value prior to the new general reassessment is no greater than 50% of the median increase of non-residential properties in that county from the new general reassessment.
- (4) A non-residential tax parcel's assessed value from the new general reassessment is at least 25% less than the actual sale price from the parcel's most recent sale within the 5 years preceding the new general reassessment, whenever the actual sale price is determinable by public records.

 The quality control review grants the Office of Finance the power to make revisions and corrections to a tax parcel while adhering to the standards of §§ 8306(a), 8312, and 8321 of Title 9. The Act sets deadlines for the Office of Finance to make revisions, the assessment and levying of taxes, and the mailing of tax statements.

 This Act also amends Title 14 to provide a deadline date for all school boards in New Castle County to deliver their warrants and provides emergency funding if a school experiences a shortfall of funding.

 This Act expires on March 31, 2027, unless otherwise provided by a subsequent act of the General Assembly.

 Author: Senator Cruce